

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 09/16/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the Court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel/parties intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
5	30-2016-00885275 Dongtien LLC vs. Kopensky	The Court has read and considered Defendant Theresa A. Kopensky's Motion to Vacate Judgment and Renewal (ROA 54), Plaintiff's Opposition (ROA 63), and Defendant's Reply to Opposition (ROA 63). The Court takes Judicial Notice of the Proof of Service of Summons (ROA 26), 12/21/2016 Minute Order (ROA 32), Return on Writ of Possession (ROA 40), Abstract of Judgment (ROA 42), Application for and Renewal of Judgment (ROA 46), and Proof of Service by Mail (ROA 51). The Court DENIES the Defendant's request to Strike the Plaintiff's Opposition. The Court sets this matter for an evidentiary hearing. Plaintiff's Counsel is ordered to provide the Court: (1) any proof of service or documentary evidence showing that the Defendant was served with the Abstract of Judgment or Judgment on or around March 2017. (2) When and how Plaintiff's counsel became aware of Defendant's address in San Diego County, because clearly the Plaintiff was aware of that address at minimum on March 8, 2017, based on ROA 42.

		Each counsel will be able to present their evidence to support their position. The Court orders the Defendant to be present in court. If the Defendant is unable to be present in court, an ex parte motion requesting remote appearance and the basis is to be filed with this Court at least 5 court days in advance of the hearing date. The Court set this matter for an evidentiary hearing on the Motion to Vacate for October 21, 2026 at 1:30 PM in Department C61. The Court Clerk is to provide notice of the Court's ruling.
6	30-2026-01592499 Mahgerefteh vs. Hawes	The Court has read and considered the Motion to Quash Service of Summons (ROA 13) and Plaintiff's Opposition (ROA 19). As this matter requires an evidentiary hearing as to the merits, as there is no rebuttable presumption, and as the person who served notice is not a registered process server, the Court will set this matter for an evidentiary hearing on 9/23/2026 at 1:30 PM in Dept. C61. Parties are ordered back for that date.
7	30-2026-01590215 TMP II Apts LLC vs. Lacy	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 7) and the Plaintiff's Opposition (ROA 18). The Court takes Judicial Notice of the Proof of Service of Summons-Personal (ROA 13). The Defendant filed the Motion to Quash Service of Summons as a boilerplate motion, without changing the information in the motion or providing relevant facts for this case. Filing a frivolous motion with the Court may warrant monetary sanctions. The Court finds the Motion frivolous because Defendant did not provide any facts related to this case in the motion and failed to review it for accuracy before submission. California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. Here, ROA 13 shows that a registered process server effectuated personal service on the Defendant on 8/21/2026 at 7:32 AM. Defendant provides no evidence to rebut the presumption under Evidence Code section 647. The Court DENIES the Motion to Quash Service of Summons. Defendant is ordered to file a responsive pleading within 3 calendar days. The Court orders a shortened time period because Defendant filed a frivolous motion. Plaintiff is ordered to provide notice of the Court's ruling.
8	30-2026-01587609	The Court has read and considered the Defendant's Motion to Quash Service (ROA 16) and the Plaintiff's Opposition (ROA 22).

	The Irvine Company LLC vs. Broadway	The Court takes Judicial Notice of the Proof of Service of Summons (ROA 15) and the Order to Serve Summons by Posting (ROA 10). California Evidence Code Section 647 establishes a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. The Defendants failed to provide evidence to rebut the presumption established under Evidence Code Section 647. Plaintiff provided the Court with Exhibit 1, the accountability report showing the pictures taken of the attempted service and the posting that occurred on 8/13/2026. The Defendant provides no evidence to rebut the presumption under Evidence Code section 647, except for his own self-serving statement that he was not properly served and that there was only one attempt at service. The Court DENIES the Motion to Quash Service. The Defendant is ordered to file a responsive pleading within 5 calendar days. The Plaintiff is ordered to provide notice of the Court's ruling.
9	30-2026-01584273 Umbria Apartment Homes LLC vs. Maharmeh	The Court has read and considered the Defendant's Motion to Set Aside Judgment After Trial (ROA 25). The Court takes Judicial Notice of the 8/25/2026 Minute Order (ROA 20) and Notice to Entry of Judgment (ROA 22). The Defendant submitted documentation concerning medical appointments on August 14, 2026, August 15, 2026, and August 24, 2026. The Concentra Work Activity Status Report dated August 24, 2026, states that the Defendant may "Return to modified work/activity today" and indicates that the Defendant was not prescribed any medication that would affect the ability to drive or operate machinery. The submitted documentation does not establish that the Defendant had a medical appointment on August 25, 2026, the date of trial. The Defendant did not file a motion to continue the matter, nor did the Defendant provide notice to the Court or Plaintiff's counsel, either before or on the date of trial, that a continuance was necessary. Further, the August 24, 2026, Work Activity Status Report authorized the Defendant to return to modified work or activity that same day. Based on the record before the Court, the Defendant has not established a sufficient basis for the failure to appear or for the failure to request a continuance before the date of trial. The Court therefore finds that the Defendant's failure to notify the Court of the need for a continuance constitutes inexcusable neglect. The Court further finds that the Defendant failed to meet the burden required for relief under California Code of Civil Procedure section 473(b).

		The Court DENIES the Defendant's Motion to Set Aside Judgment After Trial. Plaintiff is ordered to provide notice of the Court's ruling.
10	30-2026-01578705 VAOC Newport Plaza, LP vs. Tate	The Court has read and considered the Defendant's Motion for Attorneys' Fees and Costs After Judgment (ROA 47), Plaintiff's Opposition (ROA 60), and Defendant's Reply to the Opposition (ROA 64). The Court takes Judicial Notice of the Complaint (ROA 2), 7/28/2026 Minute Order, and 8/26/2026 Minute Order. As a threshold matter, although Plaintiff checked item 7(b) on the Complaint (ROA 2), indicating that the tenancy was subject to the Tenant Protection Act of 2019, the Court did not make a finding at trial that the Tenant Protection Act applied to this matter. The Court finds, instead, that California Code of Civil Procedure section 1946.2(e)(2) applies to the subject property because the facility is a licensed residential care facility for the elderly. Plaintiff also identifies several inaccuracies and vague references in Defendant's moving papers, including the reference to a nonexistent item 6(k) of the lease. Defendant does not identify the purportedly "correct" or applicable provision of the Residency Agreement in his Reply. Nor did Defendant attach the Residency Agreement to the motion or request judicial notice of the agreement. The Court is not required to independently search the record for evidence or documents a moving party references but fails to submit in support of the requested relief. The moving party must identify and provide the evidence and legal authority on which the requested relief is based. The trial was held on July 28, 2026, more than one month ago. This is Defendant's third version of the Motion for Attorney's Fees. Defendant therefore has had ample time and opportunity to present a motion that is sufficiently reasoned and supported by applicable legal authority and the record. Defendant also argues in Reply that Plaintiff requested attorney's fees in the Complaint. That assertion does not, by itself, establish a basis for an award of attorney's fees to Defendant. A party's request for attorney's fees must be supported by applicable statutory or contractual authority. Plaintiff's request for attorney's fees does not establish that Defendant is likewise entitled to them. Defendant has not identified the applicable provision of the Residency Agreement authorizing an award of attorney's fees to the prevailing party, and Defendant has not provided statutory authority supporting such an award. Accordingly, the Court finds that Defendant has not established a legal or contractual basis for the requested attorney's fees. The Court DENIES the Motion for Attorneys Fees. The Court finds that Defendant Karl Tate was the prevailing party at trial and awards court costs of \$225 payable by the Plaintiff, VAOC Newport Plaza, LP. Parties waive notice.

11	30-2026-01542413 Christopher Paul Teague as Trustee of the Teague Family Trust dated August 5, 2010 as restated on August 17, 2018 vs. Rutledge	The Court has read and considered the Defendant's Motion to Vacate (ROA 70), Declaration in Support (ROA 73), Reply to Motion (ROA 75), Plaintiff's Opposition (ROA 83), and Defendant's Reply to Opposition (ROA 85). The Court take Judicial Notice of the Defendant's Ex Parte Application Motion to Set Aside Default (ROA 25), 3/13/2026 Minute Order (ROA 32), Ex Parte Application for Stay of Execution of Judgment (ROA 34), 3/17/2026 Minute Order (ROA 36), Motion to Vacate (ROA 40), 5/1/2026 Minute Order (ROA 50), Judgment – Unlawful Detainer (ROA 19), 6/5/2026 Minute Order, Declaration in Support of Default Judgment by Court CCP 585(d) (ROA 62), Complaint (ROA 2), and Judgment-Unlawful Detainer (ROA 64). Plaintiff's Opposition mistakenly states that Defendant failed to provide a proposed Answer; the Defendant's proposed Answer was attached to ROA 73. This is the Defendant's third attempt to vacate or set aside the default judgment in this matter. In this Motion, Defendant provides documentation that she electronically paid \$3,004.19 on 1/1/2026 for January 2026 rent to the Plaintiff. Plaintiff then issued a refund check to the Defendant. The Notice to Pay Rent or Quit attached to the Complaint was served on 1/15/2026 stating that January 2026 rent of \$3,264 was past due. The Notice to Pay or Quit was served after the Plaintiff returned Defendant's online rent payment. Plaintiff fails to address this issue entirely in their Opposition. In previous filings requesting to vacate/set aside the default judgment, the Defendant has indicated confusion or mistake due to the rental amount dispute, which the Defendant provides no evidence to support; however, here the Defendant shows that she paid, at minimum, a portion of her rent for January 2026, which the Plaintiff refunded and then served her with a Notice to Pay or Quit for the entire rental amount days later. This was the first month the new rental rate took effect on the subject property. The Court finds that the Defendant met her burden under California Code of Civil Procedure section 473(b) of mistake and excusable neglect. The Court sets aside the default and default judgment. The Court Clerk is ordered to file the Defendant's Answer, which is attached to ROA 73. As the Writ of Possession was already executed and the Defendant is not contesting possession of the property, as she has relocated, the Court will set this matter for a Court Trial on 10/26/2026 at 1:30 PM in Department C61. All parties and witnesses are to appear in person. All parties are to have three copies of any documentary evidence they wish to present to the Court. The parties are ordered to meet and confer with each other prior to the day of trial to exchange documents and determine if settlement may be reached in this matter. All parties are ordered to appear for the Court Trial on 10/26/2026 at 1:30 PM without any further order or notice.
12	30-2026-01553185 Gelt Oasis Exchange, LLC vs. Monroe	The Court has reviewed the Defendant's Motion to Vacate Default Judgment (ROA 30) and Proof of Service (ROA 36).

		The Court takes Judicial Notice of the Return on Writ of Possession (ROA 20), Judgment-Unlawful Detainer (ROA 13), Request for Entry of Default (ROA 14) and Proof of Service of Summons (ROA 10). The Plaintiff failed to file an objection or opposition in this matter. ROA 20 indicates that the Writ was returned unsatisfied because the Orange County Sheriff's Department received no further instructions to proceed with enforcement of the writ as of April 16, 2026. Defendant declares that no lockout occurred, Defendant paid the money owed, and remains at the subject premises. The Plaintiff has filed no contradictory statement with the Court. The Court GRANTS the Motion to Set Aside Default and Default Judgment. The Court QUASHES the Writ of Possession. The Court Clerk is to notify the Orange County Sheriff's Department that the Writ of Possession is QUASHED. The Court sets this matter for Court Trial on October 5, 2026 at 8:30 AM in Department C61. All parties and witnesses are to appear in person. All parties are to have three copies of any documentary evidence they wish to present to the Court. The parties are ordered to meet and confer with each other prior to the day of trial to exchange documents and determine if settlement may be reached in this matter. The Court Clerk is ordered to provide notice of the Court's Ruling.
13	30-2026-01575255 Wheatley vs. Marchand	The Court has read and considered the Notice of Bankruptcy Discharge (ROA 33) and the Plaintiff's Ex Parte Application to Set Hearing on Defendant's Motion to Quash (ROA 35). The Court takes Judicial Notice of the Defendant's Motion to Quash Service of Summons (ROA 15) filed on 7/9/2026. As the bankruptcy matter regarding Ms. Marchand has been discharged, the Stay of the unlawful detainer proceedings are lifted. The Court sets the Motion to Quash Service of Summons for hearing on 9/22/2026 at 8:30 AM in Department C61. Plaintiff's counsel is ordered to serve notice of the Court's ruling by overnight mail if Defendant is not present in Court.
14	30-2026-01589759 Palma vs. Umana	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 16), the Complaint (ROA 2) and the Plaintiff's Opposition (ROA 30). The Court OVERRULES the Demurrer. The Defendant filed the Demurrer as a boilerplate application, without changing the information in the application or addressing any of the facts within this case. Filing a frivolous motion with the Court may warrant monetary sanctions. The Court finds the

		Demurrer frivolous because Defendant stated erroneously there were six causes of action which were not part of this case and failed to address the actual cause of action filed in the Complaint. The Court orders the Defendants to file an Answer within 5 calendar days. The Plaintiff is ordered to provide notice of the Court's ruling.
15	30-2026-01589203 Sequoia Equities - Hidden Hills vs. Gabroy	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 32), Proof of eService (ROA 38) and Plaintiff's Opposition (ROA 42). The Court takes Judicial Notice of the Complaint (ROA 2). The Defendant's argument in the Demurrer raises a factual and legal dispute which requires a finding of fact/law made at trial. The issue for a demurrer is whether, on its face, the complaint, if it is assumed all things in the complaint are true, sufficiently states a cause of action. The Court OVERRULES the Demurrer. The Defendant is ordered to file an Answer within 5 calendar days. The Plaintiff is ordered to provide notice of the Court's ruling.
18	30-2026-01567293 Nguyen vs. Rios	The Court has read and considered the Defendants Brianna Davis and Javier Rios' Motion to Set Aside Judgment After Trial (ROA 74). The Court takes Judicial Notice of the Clerk's Certificate of Mailing/Electronic Service (ROA 59), 8/12/2026 Minute Order (ROA 65), and Judgment-Unlawful Detainer (ROA 66). The Defendants argue that they filed an Answer on June 17, 2026, and that default judgment was entered against them on 8/12/2026. The Minute Order of 8/12/2026 accurately reflects that the Court found that all Defendants were properly noticed of the August 12, 2026, Court trial date by the Clerk's Office on 7/30/2026. At 10:18 AM, none of the Defendants appeared, and as notice was properly provided to the Defendants, the Court proceeded with a Court trial. The Court received documentary evidence as well as witness testimony before rendering judgment for the Plaintiff. The Judgment-Unlawful Detainer mistakenly marked that the Judgment was entered by default rather than court trail as reflected by the minute order. The Plaintiff is ordered to submit an amended judgment on the UD-110 form which checks #2 After Court Trial as well as the rest of the information in the 8/12/2026 Minute Order no later than 4 PM by September 18 2026. The Court DENIES the Defendant's Motion to Set Aside Judgment After Trial. Defendant's provide no basis under California Code of Civil Procedure section 473(b) as to why they failed to appear for the court trial on 8/12/2026. The Court orders the Plaintiff to give notice of the Court's ruling.